

BEFORE THE STATE BOARD OF EXAMINERS OF LICENSED PROFESSIONAL
COUNSELORS

STATE OF COLORADO

Board Complaint No. 03.023(C)

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE AS A LICENSED PROFESSIONAL COUNSELOR IN THE STATE OF
COLORADO OF PERRY L. FERRIS, LPC, LICENSE NO. 1297,

Respondent.

IT IS HEREBY STIPULATED by and between the Colorado State Board of Examiners
of Licensed Professional Counselors ("Board") and Perry L. Ferris, LPC ("Respondent") as
follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this stipulation.
2. Respondent was licensed as a Licensed Professional Counselor in the State of Colorado at all relevant times herein.
3. Respondent admits the following:
 - a. Respondent was licensed as a licensed professional counselor on November 27, 1995, being issued license number 1297.
 - b. Respondent allowed his license to lapse on June 30, 1998.
 - c. In 1998, Respondent provided therapy for a client identified as MC.
 - d. Respondent continued to provide therapy for MC and to hold himself out as a licensed professional counselor after his license lapsed.
 - e. Respondent met with MC in social settings during the time that he was also providing therapy to her.
4. By virtue of the admissions in paragraph 3 above, respondent admits, and the Board hereby finds, that respondent violated § C.R.S. 12-43-222 (1) (g), (i), and C.R.S. 12-43-702.5.

5. The statutory authority of the Board is as follows:

12-43-222. Prohibited activities – related provisions. (1) A person licensed, registered, or regulated under part 3, 4, 5, 6, or 7 of this article is in violation of this article if such person:

- (g) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which such person practices. A certified copy of a malpractice judgment of a court of competent jurisdiction shall be conclusive evidence of such act or omission, but evidence of such act or omission shall not be limited to a malpractice judgment.

- (i) Has maintained relationships with clients that are likely to impair such person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives.

702.5 Has not listed his credentials in the database directory.

6. Respondent hereby surrenders his license and the right to practice as a licensed professional counselor in the State of Colorado and requests the Board to accept said relinquishments. Such relinquishment shall have full force and effect as a revocation ordered by the Board. Respondent tenders the license simultaneously with execution of this document. Following relinquishment of the license, Respondent shall not perform any act requiring a license to practice.

7. Respondent understands that if Respondent applies for licensure at any future time, respondent will be required to comply with all criteria for initial licensure which exist at the time of the application.

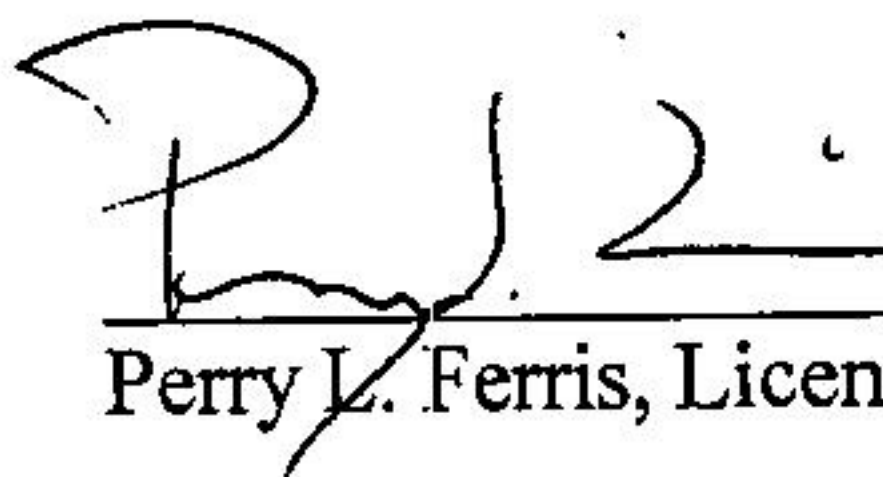
8. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing pursuant to § 12-43-224, C.R.S. (2004) concerning the facts admitted in paragraph 3 above, and hereby waives those rights and requests that this Stipulation and Order be accepted by the Board with the same force and effect as an Order entered as a result of a formal disciplinary hearing.

9. This Stipulation and Order is entered into by Respondent voluntarily and without coercion and after an opportunity to consult with counsel and with full understanding of the legal consequences of this Stipulation and Order and the right to formal hearing on all matters herein.

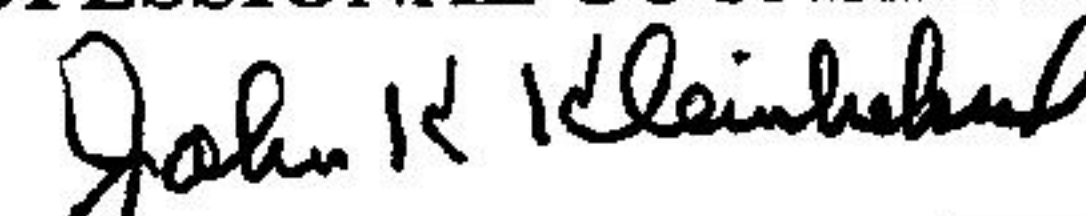
10. This Stipulation and Order shall become an Order of the Board when accepted by the Board and signed by an authorized Board representative.

11. This Stipulation and Order is a public record in the custody of the Board at all times.

RESPONDENT


Perry L. Ferris, License No.1297

**COLORADO STATE BOARD OF
EXAMINERS OF LICENSED
PROFESSIONAL COUNSELORS**


John K. Kleinhessel
President of the Board

Effective Date: This 3rd day of
May 2004.

APPROVED AS TO FORM


Amos Martinez, Ph.D.
ES Coordinator

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